

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.50314 of 2025

Khalid Mehmood and another **Versus** Muhammad Ali alias Tipu,
etc.

S.No.of order/ Proceeding	Date of Order/ Proceeding	Order with signature of Judge, and that of parties’ counsel, where necessary.
	17.09.2025	Ch. Zahid Imran, Advocate for the petitioners.

Through this writ petition, the petitioners have challenged the order dated 03.05.2024 passed by the Civil Judge, Sargodha, whereby application filed by petitioners-plaintiffs under Order VI Rule 17 of the Code of Civil Procedure, 1908 (CPC) seeking amendment in the plaint was partly allowed as well as order dated 23.06.2025 passed by the Additional District Judge, Sargodha, whereby civil revision filed by the petitioners against the order passed by the Civil Judge was dismissed.

2. Learned counsel for the petitioners contends that the impugned orders passed by the courts below are arbitrary, perverse, and contrary to both the law and the facts, thereby leading to a miscarriage of justice. He maintains that the sought amendments do not contradict the original plaint; instead, they serve to elaborate and clarify existing pleadings, which is a permissible practice. Learned counsel emphasizes that the petitioners’ application was partly declined merely on the ground of delay, whereas according to Order VI Rule 17 of the CPC, an amendment can be sought at any stage of proceedings if it is necessary to determine the real question in controversy. Learned counsel further argues that the refusal to allow these amendments will

cause irreparable loss and prejudice to the petitioners' case because any evidence presented that goes beyond the pleadings will not be considered by the court and this would effectively deny them a fair opportunity to prove their case.

3. Heard. Available record perused.
4. The trial court in the impugned order dated 03.05.2024 recorded the following findings:-

"مدعیان/سائلان نے درخواست ترمیم عرضی دعوی دائر کی ہے۔ دعوی ہذا مورخہ 17-04-11 کو دائر ہوا جو کہ مورخہ 22-04-26 کو ڈگری ہوا۔ بعد ازاں فاضل عدالت اپیل نے دعوی ہذا ریمانڈ کیا اور دعوی کے فیصلہ کا بعد از قلمبند کرنے شہادت بمطابق جدید تنقیحات حکم دیا۔ مدعیان نے دعوی تکمیل مختص معاہدہ بیع دائر کیا ہے مدعیان جز 'ب' میں بعد از delete کرنے جز 'ب' جدید ترمیم شدہ جز 'ب' کی ترمیم کرنا چاہتے ہیں۔ جز 'ب' عرضی دعوی میں تین عدد رسیدات کے ذریعہ وصول کردہ جملہ زر بیع کی حد تک ترمیم کر کے جدید جز 'ب' ایضاً کرنا چاہتے ہیں۔ ان رسیدات کا دعوی ہذا میں بھی ذکر ہے اور رسیدات کو شامل مسل بھی کروایا گیا ہے لہذا اس ضمن کی حد تک جدید ترمیم شدہ جز 'ب' شامل کرنے سے دعوی کی ہیئت و نوعیت تبدیل نہ ہوگی۔

مدعیان/سائلان ضمن نمبر 1 کے آخر میں جو ترمیم کرنا چاہتے ہیں اس میں گواہان کے نام وقت معاہدہ اور ادائیگی زر بیع کی مختلف تواریخ کا اندراج کرنا چاہتے ہیں۔ یہاں یہ بات قابل ذکر ہے کہ جب دعوی دائر کیا تب ان تمام حقائق کو عرضی دعوی میں تحریر کرنا ضروری تھا دوسرا دوران شہادت و فیصلہ اس بابت کوئی استدعا موجود نہ تھی۔ اپیل میں بھی ایسا کوئی موقف اختیار نہ کیا تھا۔ اس میں کوئی شک نہ ہے کہ دعوی کا نئے سرے سے فیصلہ بعد از قلمبند ہونے شہادت کیا جانا ہے لیکن کسی بھی دوسرے فریق کے حقوق کو نقصان نہ پہنچایا جا سکتا ہے۔ اگر مندرجہ ضمن نمبر 1 درخواست ہذا کی ترمیم کی اجازت دی جاتی ہے تو اس سے دعوی کی نوعیت تبدیل ہوگی۔ لہذا اس حد تک دعوی میں ترمیم کی استدعا مسترد کی جاتی ہے۔ درخواست ترمیم عرضی دعوی جزوی منظور کی جاتی ہے۔ - - -"

Above findings were affirmed by the Additional District Judge by way of impugned order dated 23.06.2025.

5. In the instant case, the controversy revolves around the interpretation and application of

Rule 17 of Order VI of the Code of Civil Procedure, 1908 (CPC), which reads as under:-

“17. Amendment of pleadings.— The Court may at any stage of the proceedings allow either party to alter or amend his pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties.”

Plain reading of above provision suggests that an application for amendment of pleadings under Rule 17 ibid can be moved at any stage of proceedings. However, authority of the court under the aforementioned Rule remains discretionary. This is manifest not only from the use of word “may” but also “in such manner and on such terms as may be just” in that provision. Nonetheless, guideline has been provided by the legislature to the effect that only such amendments to the pleadings are to be allowed which are necessary for determining real questions in controversy between the parties. The discretionary power under Rule 17 ibid is, however, further guided by principles enunciated by the superior courts from time to time. The Supreme Court of Pakistan in the case of “Abaid Ullah Malik v. Additional District Judge, Mianwali and others” (PLD 2013 SC 239) elaborated some of the principles governing exercise of such discretionary power in the following terms:-

“There can be no cavil that the court has ample authority and discretion to allow amendments of the pleadings in appropriate cases, which authority may be exercised at any stage of the proceedings in the trial, and in certain cases amendments can be permitted at the stage of appeal or even in the revisional jurisdiction. There also can be no disagreement that the power and authority in allowing the amendments shall be liberally

exercised, however, keeping in view the salutary rule, that the proposed amendment(s) is/are expedient for the purposes of determining the real questions in controversy between the parties, it should not alter the nature of the suit or the defence. Similarly, at the same time some important fundamentals should also not be lost in sight and must be kept in mind by the courts while exercising such authority, in that, the amendment sought/proposed must not be tainted with dishonesty of purposes; it is not meant to withdraw and resile from an admission made in the pleadings of the parties; it should not cause prejudice to the opposite side, particularly to deprive such (opposite) side of a benefit attained by it from the evidence adduced on the record by the party asking for the amendment; the conduct and the motive of the party and the object/purpose behind the request for the amendment.”

(Emphasis supplied by this Court)

6. In the application for amendment, the petitioners sought to delete "ب" جز of the plaint and to add amended "ب" جز in its place, which prayer was allowed by the trial court. This amendment related to the receipts for the sale consideration. The trial court observed that these receipts were already mentioned in the original plaint and were part of the record. This part of proposed amendment was correctly deemed a clarification and necessary for the proper adjudication of the existing controversy.

7. The second amendment sought by the petitioners was to assert the following paragraph at the end of paragraph No.1 of the plaint:-

"نیز مورث اعلیٰ مدعیان مسمی غلام چشتی نے بھی جائیداد متدعویہ واقعہ عصمت کالونی مندرجہ کھیوٹ نمبر 1 خسرہ نمبر 17 رقبہ تعدادی 1 کنال 10 مرلے حال کھیوٹ نمبر 4066 ڈپٹی ظفراللہ اور اس کے خاندان کے مختار کار مسمی روح اللہ خان سے بموجودگی احسان اللہ (جو کہ ڈپٹی ظفراللہ کے حقیقی بھانجے تھے) مورخہ 25-12-1968 کو بالعوض مبلغ

-/30,000 روپے روبرو گواہان 1۔ محمد انور ولد محمد صدیق۔ 2۔ عبدالقیوم ولد حاجی اللہ دتہ۔ 3۔ محمد عثمان ولد نجیب الدین بوقت صبح 10:00 بجے بمقام دفتر بائعان واقع ظفر کالونی سرگودھا خرید کی اور مورث مدعیان نے اسی موقع پر مذکورہ بالا گواہان کی موجودگی میں -/2,000 روپے نقد ادا کیے۔ البتہ باہمی اعتماد کی بنا پر اس وقت کوئی تحریر عمل میں نہ لائی گئی۔ البتہ اس کے بعد بھی مورث مدعیان نے مورخہ 19-01-1969 کو مبلغ -/3,000 روپے، مورخہ 12-03-1969 کو مبلغ -/4,000 روپے، مورخہ 21-09-1969 کو مبلغ -/7,000 روپے، مورخہ 09-11-1971 کو مبلغ -/3,000 روپے اور آخری دفعہ مورخہ 07-12-1972 کو مبلغ -/1,000 روپے اور علیحدہ سے مبلغ -/10,000 روپے بذریعہ رسید نمبر 192 مسمی روح اللہ خان کو ادا کیے ہیں۔ جس رقم کا حوالہ رسید نمبر 1297 بوقت وصولی رقم مبلغ -/7,000 روپے مورخہ 21-09-1971 دیا گیا۔ اس طرح جملہ رقم زر بیع مبلغ -/30 ہزار روپے مختلف اوقات میں مذکورہ بالا گواہان کے روبرو ادا کر دیئے گئے اور مکمل رقم وصول کر کے روح اللہ خان نے 3 عدد رسیدات اپنے حقیقی دستخطوں سے جاری کر کے حوالے مورث مدعیان کیں۔ جس سے موقف ہم مدعیان کی مکمل تائید ہوتی ہے۔"

A copy of the amended plaint is annexed with the plaint, perusal whereof indicates that in paragraph No.1, the petitioners have claimed that their predecessor in interest purchased the suit plot from predecessor in interest of defendants No.1 to 4/e more than 44 years ago; the agreed upon sale consideration had been paid; possession of the plot had been delivered to the purchaser. The relevant extract from paragraph No.1 of the plaint is reproduced below:-

"۔۔۔ اور کہ عرصہ زائد از چوالیس (44) سال قبل مورث اعلیٰ مدعیان فریق نے بھی مورث مدعا علیہان 1 تا 4/e سے پلاٹ زیر دعویٰ خرید کیا گیا۔ طے شدہ زر ثمن مبلغ -/30,000 روپے (تیس ہزار روپے) ادا کر دیا گیا۔ قبضہ جائیداد/پلاٹ حوالے خریدار مذکور کیا گیا۔ مامدعیان فریق حسب ضرورت تعمیرات کر کے مالک، قابض اور متصرف جائیداد زیر دعویٰ کے ہو گئے اور بغیر کسی مزاحمت و مداخلت کے قابض چلے آ رہے ہیں۔ اکثر اوقات ڈپٹی ظفر اللہ مرحوم کی جانب سے خاندان کے مختار کار روح اللہ ولد رحمت خان اور احسان اللہ ولد رحمت خان بھانجے حقیقی ڈپٹی ظفر اللہ خان رسیدات وصولی زر ثمن جاری کی جاتی تھیں۔"

A side by side comparison of the original plaint and the proposed insertions reveals that the proposed amendments are not just a clarification, but a complete overhaul of the factual matrix. It seeks to introduce, for the very first time, the specific date of the alleged agreement, the names of three witnesses, the exact time and place of the transaction and a detailed breakdown of

installment payments with specific dates and amounts. These are not minor details rather foundational facts that form the very basis of the cause of action.

8. The timing of filing of application for amendment by the petitioners is also critically important. There is no cavil with the position that delay for itself, cannot be adequate reason for refusing an amendment, yet this is not a case where an amendment is sought shortly after the filing of the suit upon discovery of a *bona fide* mistake. The suit was instituted more than a decade ago. It has undergone a full trial, a decision, and an appeal, and was subsequently remanded. Throughout the entire first round of litigation, the petitioners never breathed a word about the specific facts they now wish to plead. As noted by the courts below in the impugned orders, petitioners' witnesses while in the witness box, did not depose to these facts. This profound silence at the most opportune moments leads to the inference that the proposed amendment is an afterthought, designed to fill the lacunae and cure the defects exposed in the first round of the litigation. The plea that the omission was due to the ill advice of a previous counsel is clearly a weak and unconvincing excuse, which cannot be allowed to operate to the prejudice of respondents.

9. The courts below have exercised their jurisdiction judiciously and in accordance with the settled principles of law governing the amendment of pleadings. Learned counsel for the petitioners failed to point out any illegality or jurisdictional error in the orders passed by the courts below, warranting interference of this Court in the exercise of jurisdiction

under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973.

10. For the foregoing reasons, instant petition, being devoid of any merit, is hereby dismissed *in limine*.

Office is directed to transmit a copy of this order to the trial court, forthwith.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**